



TERMS OF SERVICE FOR BLOOM ACADEMY AFRICA LIMITED

1. INTRODUCTION

Welcome to Bloom Academy Africa. Throughout the website, the terms "we," "us," and "our" refer to Bloom Academy Africa. These Terms of Service constitute a legally binding agreement between you ("you," "your," or "Learner") and Bloom Academy Africa concerning your access to and use of our website, learning platform, courses, programs, educational content, events, communities, and related services. Bloom Academy Africa reserves the right, at its sole discretion, to modify or replace these Terms of Use from time to time. If you object to any such changes, your sole recourse is to cease using the platform. Your continued use of the Platform following any changes to these Terms will constitute your acknowledgement of, and agreement to be bound by, the amended Terms.

Our website is available at:

<https://bloomacademyafrica.com>

Our learning platform is available at:

<https://app.bloomacademyafrica.com>

By creating an account, enrolling in a course, purchasing a program, accessing our platform, or otherwise using our services, you acknowledge that you have read, understood, and agree to be bound by these terms. If you do not agree to these terms, you should not use our platform or services. These terms should be read together with our Privacy Policy, which explains how Bloom Academy Africa collects, uses, stores, and protects personal data.

2. DEFINITIONS AND INTERPRETATION

2.1 Definitions

For purposes of these Terms:



“Account” or “Learner Account”

means the account created by a Learner to access the Bloom Academy Africa Platform and Services.

“Bloom Academy Africa”

means Bloom Academy Africa Limited and, where applicable, its authorised affiliates, representatives, instructors, contractors and service providers.

“Course”

means any educational course, programme, training, workshop, bootcamp or learning programme offered by Bloom Academy Africa.

“Course Content”

means educational information and materials made available through a course, including text, images, photographs, videos, audio, documents, presentations, assignments, assessments, templates and other learning materials.

“Course Fee”

means the applicable fee payable for a course or service.

“Learner”

means any individual who creates an Account, registers for, purchases, enrolls in or accesses a Course or Service.

“Platform”

means Bloom Academy Africa's website, learning management system, mobile or web applications, online communities, communication channels and any other digital platform we may make available from time to time.

“Services”

means the Courses, educational programmes, events, resources, learning-platform services, community services and other services provided by Bloom Academy Africa.

“Personal Data”

means personal data as defined under applicable data-protection law, including information relating to an identified or identifiable individual.



“Privacy Policy”

means Bloom Academy Africa's Privacy Policy, available on our website, as amended from time to time.

“Third-Party Service”

means any product, platform, technology, payment processor, software, website or service operated by a third party and used in connection with our Services.

“User Content”

means content submitted, uploaded, posted or otherwise provided by a Learner through the Platform or in connection with our Services.

3. ACCEPTANCE OF THESE TERMS

3.1 By accessing or using the Platform or Services, you agree to comply with these Terms and any additional rules, policies or requirements communicated to you in connection with a particular Course or Service.

3.2 Certain Courses, promotions, events or Services may have additional terms. Where additional terms apply, they will be communicated to you before or at the time they become applicable.

3.3 If there is a conflict between these Terms and a specific written agreement applicable to a particular Course or Service, the specific agreement will apply to the extent of the conflict.

3.4 We may update these Terms from time to time. Where we make material changes, we will provide reasonable notice through the Platform, email or another appropriate communication method. Your continued use of the Platform after the effective date of an updated version constitutes acceptance of the revised Terms, unless applicable law requires a different form of acceptance.

4. ELIGIBILITY AND LEARNER ACCOUNTS

4.1 You must provide accurate, current and complete information when creating an Account or registering for a Course.

4.2 You are responsible for keeping your Account information accurate and up to date.



4.3 Unless otherwise stated for a particular programme, our Services are intended primarily for persons aged 18 and above. Where a Service is made available to a person under 18, the applicable parental or guardian requirements will apply.

4.4 You are responsible for maintaining the confidentiality of your login credentials.

4.5 You must not:

- share your account with another person;
- sell, transfer or assign your account;
- allow another person to access paid course content through your account;
- attempt to gain unauthorised access to another person's account; or
- Use another person's credentials without permission.

4.6 You must notify Bloom Academy Africa promptly if you suspect that your Account has been compromised or accessed without authorisation.

5. PLATFORM ACCESS AND AVAILABILITY

5.1 We will use reasonable efforts to keep the platform available and functioning properly. However, we do not guarantee that the platform will always be:

- uninterrupted;
- error-free;
- available at all times;
- free from bugs or technical issues; or
- compatible with every device or internet connection.

5.2 The platform may occasionally be unavailable because of:

- scheduled maintenance;
- system upgrades;
- technical problems;
- cybersecurity incidents;
- third-party service interruptions;
- internet or telecommunications failures; or
- circumstances beyond our reasonable control.



5.3 We may modify, suspend or discontinue a feature or part of the platform where reasonably necessary for operational, technical, legal, security or business reasons. Where a change materially affects a paid Course, we will take reasonable steps to notify affected Learners and, where appropriate, provide a reasonable alternative.

6. ELECTRONIC COMMUNICATIONS

6.1 By creating an account, you agree that Bloom Academy Africa may communicate with you electronically.

Communications may include:

- emails;
- Platform notifications;
- course announcements;
- assessment reminders;
- payment confirmations;
- account notifications;
- security alerts;
- support communications; and
- other administrative notices.

6.2 Electronic communications may satisfy legal or contractual notice requirements where permitted by applicable law.

6.3 You are responsible for maintaining access to the email address associated with your account and ensuring that messages from Bloom Academy Africa can be received.

6.4 Marketing communications are subject to applicable consent and opt-out requirements described in our Privacy Policy.

7. LEARNER RESPONSIBILITIES

As a learner, you agree to:

1. Comply with these Terms and applicable course rules;
2. Provide accurate information;
3. Pay applicable course fees;
4. Participate appropriately in classes, assignments, and learning activities;

5. Meet applicable assessment deadlines;
6. Respect instructors, staff, and other learners;
7. Use the platform only for lawful purposes;
8. Protect your login credentials;
9. Respect Bloom Academy Africa's intellectual property;
10. Refrain from sharing paid course content without permission;
11. Avoid behavior that disrupts the learning environment;
12. Comply with reasonable instructions from instructors and platform administrators; and
13. Notify us promptly of issues that materially affect your ability to participate in a course.

8. COMMUNITY AND CODE OF CONDUCT

Where Bloom Academy Africa provides discussion forums, WhatsApp communities, social communities, live classes, or other interactive spaces, you must behave respectfully and professionally.

You must not:

- Harass, threaten or intimidate other users;
- Post discriminatory or abusive content;
- Impersonate another person;
- Share another person's private information without authorisation;
- Upload malicious software;
- Distribute spam or unsolicited advertising;
- Attempt to disrupt the Platform;
- Use the community for unlawful purposes;
- Share sexually explicit or otherwise prohibited material;
- Engage in fraud or deceptive activity; or
- Repeatedly disrupt classes or learning activities.

We may remove content or restrict access where reasonably necessary to protect Learners, instructors, staff, our systems or the integrity of the learning environment.

9. COURSE FEES AND PAYMENTS

9.1 Course Fees will be displayed or otherwise communicated before you complete a paid registration.



9.2 You are responsible for paying the applicable course fee in accordance with the payment terms communicated for the course.

9.3 Payments may be processed through third-party payment providers. By making a payment, you authorise the applicable payment provider to process the transaction and acknowledge that the provider may have its own terms and privacy policy.

9.4 Bloom Academy Africa does not ordinarily store complete payment card information where payment processing is handled by a third-party payment provider.

9.5 You agree not to use fraudulent payment information or attempt to circumvent applicable payment requirements.

10. REFUNDS, CANCELLATIONS AND WITHDRAWALS

10.1 Refund eligibility will depend on the refund terms communicated for the specific Course or service at the time of purchase.

10.2 Where a course has a specific refund or cancellation policy, that policy forms part of these terms.

10.3 Where no specific refund policy applies, refunds will be considered on a case-by-case basis, subject to applicable law and the circumstances of the request.

10.4 Nothing in these Terms is intended to exclude any consumer right or other statutory right that cannot lawfully be excluded or restricted.

10.5 Promotional codes, scholarships and discounts may have additional terms, including expiration dates and eligibility requirements.

11. SCHOLARSHIPS, PROMOTIONS, AND DISCOUNTS

Bloom Academy Africa or its partners may offer:

- Scholarships;
- Promotional codes;



- Discounts;
- Free courses;
- Gifts;
- Grants; or
- Other promotional opportunities.

Each promotion may have specific eligibility requirements, deadlines, and conditions.

Unless expressly stated otherwise, promotions:

- Cannot be exchanged for cash;
- Cannot be transferred;
- Cannot be combined with other promotions; and
- May expire after the stated validity period.

Where applicable law requires otherwise, the law will prevail.

12. COURSE CONTENT AND EDUCATIONAL MATERIALS

12.1 Bloom Academy Africa owns or has appropriate rights to use the course content made available through our platform.

12.2 Course Content may include:

- Videos;
- Written materials;
- Presentations;
- Templates;
- Assignments;
- Assessments;
- Graphics;
- Audio;
- Recordings;
- Guides; and
- Other educational materials.



12.3 Subject to your compliance with these Terms and payment of applicable fees, Bloom Academy Africa grants you a limited, personal, non-exclusive, non-transferable and revocable licence to access and use the Course Content for your own educational purposes.

12.4 You may not, without our prior written permission:

- Copy substantial portions of course content;
- Reproduce or redistribute course content;
- Sell course content;
- Sublicense Course Content;
- Share paid course content with persons who have not enrolled;
- Upload course content to another platform;
- Create a competing course substantially based on our course content;
- Commercially exploit our course content; or
- Remove copyright, trademark or other proprietary notices.

12.5 Reasonable personal use, including taking notes for your own learning, is permitted provided that it does not infringe our intellectual property rights.

13. INTELLECTUAL PROPERTY

13.1 All intellectual property rights in Bloom Academy Africa's website, platform, branding, trademarks, course content, original materials, software, graphics, designs and other proprietary materials remain with Bloom Academy Africa or the relevant rights holder.

13.2 Nothing in these Terms transfers ownership of Bloom Academy Africa's intellectual property to a learner.

13.3 The Bloom Academy Africa name, logo, trademarks and brand assets may not be used without prior written permission.

13.4 You retain ownership of original user content that you create, subject to the licence granted to us under Section 14.

14. USER CONTENT AND LEARNER SUBMISSIONS

14.1 You may submit content through the platform, including:

- Assignments;
- Project work;
- Comments;
- Questions;
- Reviews;
- Feedback;
- Discussion posts;
- Testimonials;
- Suggestions; and
- Other materials.

14.2 You retain ownership of intellectual property rights that you legally own in your user content.

14.3 By submitting User Content, you grant Bloom Academy Africa a non-exclusive, worldwide, royalty-free licence to host, store, reproduce, display and process that content to the extent reasonably necessary to:

- Operate the Platform;
- Provide educational services;
- Administer Courses;
- Facilitate assessment;
- Provide learner support;
- Maintain records;
- Improve our services; and
- Comply with legal obligations.

14.4 We will not automatically assume that because you submit content to a course or community, we have unrestricted rights to use your name, photograph, image, testimonial or submitted work for public advertising. Where your image, testimonial, personal story or identifiable work is intended for promotional use, we will obtain the appropriate permission or rely on another lawful basis where permitted by law.



14.5 You represent that you have the necessary rights to submit any content you provide to us and that your submission does not unlawfully infringe another person's rights.

15. LIVE CLASSES AND RECORDINGS

15.1 Bloom Academy Africa may conduct live classes, webinars, workshops, mentoring sessions and other interactive learning activities.

15.2 Where a session is recorded, we will provide appropriate notice where required.

15.3 Recordings may be used to provide enrolled learners with access to educational material, support course delivery and maintain appropriate course records.

15.4 Learners must not record, reproduce, redistribute or commercially exploit live sessions or recordings without Bloom Academy Africa's prior written permission.

15.5 Learners should avoid unnecessarily sharing sensitive personal information during recorded sessions.

16. ASSESSMENTS, CERTIFICATES AND COURSE COMPLETION

16.1 Where applicable, learners may be required to complete assignments, assessments, attendance requirements, projects or other learning activities to qualify for course completion.

16.2 Certificate eligibility may depend on the requirements communicated for the relevant Course.

16.3 Bloom Academy Africa reserves the right to verify course completion and certificate eligibility.

16.4 Certificates may be revoked where they were obtained through:

- Fraud;
- Impersonation;
- Academic dishonesty;



- Unauthorised sharing of accounts;
- Falsification of information; or
- Other material breaches of these Terms.

16.5 Bloom Academy Africa may introduce paid certificates or certificate-related fees for applicable courses, provided that such fees are communicated before they become payable.

17. ACADEMIC AND PROFESSIONAL INTEGRITY

Learners must submit their own work unless collaboration is expressly permitted.

You must not:

- Impersonate another learner;
- Submit another person's work as your own;
- Falsify assessment results;
- Manipulate platform records;
- Use unauthorised assistance during assessments;
- Share answers to restricted assessments; or
- Otherwise, engage in academic dishonesty.

Bloom Academy Africa may investigate suspected violations and take proportionate action.

18. CHANGES TO COURSES

Bloom Academy Africa may reasonably modify, reschedule, update, or discontinue course content or components of a course where necessary.

Changes may include:

- Instructors;
- Schedules;
- Learning materials;
- Assessment methods;
- Course structure;
- Technology;
- Delivery format; or
- Other operational details.



Where a material change substantially affects a paid course, Bloom Academy Africa will take reasonable steps to notify affected learners and, where appropriate, offer a reasonable alternative.

19. THIRD-PARTY SERVICES

Bloom Academy Africa may integrate or rely on third-party services, including:

- Payment processors;
- Video-conferencing platforms;
- Email platforms;
- Messaging platforms;
- Cloud services;
- Analytics tools;
- Learning technologies; and
- Other software or technology providers.

Third-party services are governed by their own terms and policies. Bloom Academy Africa is not responsible for the availability, security, functionality or practices of a third-party service beyond the extent required by applicable law.

20. PROHIBITED USE

You must not use the platform or services to:

1. Violate applicable law;
2. Infringe intellectual property rights;
3. Commit fraud;
4. Distribute malware;
5. Attempt unauthorised access;
6. Interfere with platform operations;
7. Scrape or systematically extract course content without permission;
8. Reverse engineer the platform except where permitted by law;
9. Resell access to the platform;
10. Share paid accounts;
11. Impersonate another person or organisation;
12. Distribute harmful or abusive material;
13. Collect another user's personal data without lawful authority; or



14. Engage in activity that could reasonably harm Bloom Academy Africa, its learners, or its systems.

21. SUSPENSION AND TERMINATION

21.1 We may suspend or terminate your account where reasonably necessary because of:

- Material breach of these Terms;
- Non-payment;
- Fraud;
- Unlawful activity;
- Serious misconduct;
- Unauthorised account sharing;
- Intellectual-property infringement;
- Security risks; or
- Other conduct that materially threatens the platform or other users.

21.2 Where appropriate, we may provide notice and an opportunity to remedy a breach before termination. Immediate suspension may occur where necessary to protect the security of the platform, other users, or Bloom Academy Africa.

21.3 Upon termination, your right to access the platform and course content may cease.

21.4 Termination does not affect rights or obligations that by their nature should survive termination, including intellectual property rights, payment obligations, confidentiality, limitations of liability and dispute-resolution provisions.

22. REFUND OR ACCESS CONSEQUENCES FOLLOWING TERMINATION

Where an account is terminated because of a learner's material breach, any refund will be determined in accordance with the applicable refund policy and applicable law.

Where Bloom Academy Africa terminates or materially discontinues a paid service for reasons unrelated to a learner's breach, we will consider an appropriate remedy where required by the applicable circumstances and law.

23. DISCLAIMERS

23.1 Bloom Academy Africa provides educational and training services. Our courses are intended to provide education, skills, and learning opportunities. Unless expressly stated otherwise, we do not guarantee:

- Employment;
- Promotion;
- Income;
- Business revenue;
- Client acquisition;
- Academic admission;
- Investment returns;
- Professional certification by an external organisation; or
- Any particular career outcome.

23.2 Information provided through our courses is educational in nature and should not be treated as legal, financial, medical, tax, or other professional advice unless expressly stated and appropriately qualified.

23.3 Learners are responsible for evaluating how they apply information obtained through our services.

24. LIMITATION OF LIABILITY

To the maximum extent permitted by applicable law, Bloom Academy Africa will not be liable for indirect, incidental, special, consequential, or punitive losses arising from your use of the Platform or Services.

This may include loss of:

- Profits;
- Business opportunities;
- Goodwill;
- Anticipated savings;
- Data or
- Other intangible losses.



Nothing in these Terms excludes or limits liability that cannot lawfully be excluded or limited under applicable Nigerian law, including liability arising from fraud or other liability that applicable law requires us to retain.

25. INDEMNIFICATION

To the extent permitted by applicable law, you agree to indemnify and hold harmless Bloom Academy Africa, its directors, officers, employees, and authorised representatives against reasonable losses, liabilities, claims, and expenses arising directly from:

- Your material breach of these terms;
- Your unlawful use of the platform;
- Fraud or intentional misconduct;
- Infringement of another person's intellectual property rights through content you submit; or
- Unauthorised use of your account caused by your failure to protect your credentials.

This clause does not require you to indemnify Bloom Academy Africa for losses caused by Bloom Academy Africa's own unlawful conduct or negligence where such liability cannot legally be excluded.

26. FORCE MAJEURE

Neither party will be responsible for failure or delay in performing obligations caused by circumstances beyond its reasonable control, including:

- Natural disasters;
- Severe weather;
- War;
- Terrorism;
- Civil unrest;
- Labour disputes;
- Government action;
- Widespread internet or telecommunications failures;
- Cyber incidents affecting critical infrastructure;
- Failure of essential third-party service providers; or
- Other events beyond the reasonable control of the affected party.



The affected party will take reasonable steps to minimise the impact and resume performance as soon as reasonably practicable.

27. DATA PROTECTION AND PRIVACY

Bloom Academy Africa processes personal data in accordance with applicable data-protection laws and our Privacy Policy.

Our Privacy Policy explains:

- The categories of personal data we collect;
- Why we process personal data;
- Lawful bases for processing;
- Data-sharing arrangements;
- International transfers;
- Retention;
- Security;
- Your privacy rights; and
- How to make a data-protection request or complaint.

By using our services, you acknowledge that your personal data may be processed in accordance with our Privacy Policy and applicable law.

28. DISPUTE RESOLUTION

28.1 Informal Resolution

If a dispute arises between you and Bloom Academy Africa, the parties should first attempt to resolve the matter amicably through good-faith discussions.

28.2 Mediation

Where appropriate, the parties may agree to mediation before commencing arbitration or court proceedings.

28.3 Arbitration

Subject to applicable law, any dispute arising out of or in connection with these Terms that cannot be resolved amicably within thirty (30) days may be referred to arbitration in accordance



with the applicable arbitration law of Nigeria and the applicable rules of the agreed arbitral institution.

Where the parties agree to institutional arbitration through the **Lagos Court of Arbitration (LCA)**, the arbitration will be administered under the applicable LCA rules. The arbitration shall be conducted by a single arbitrator unless the parties agree otherwise. The seat of arbitration shall be Lagos, Nigeria, unless the parties agree otherwise in writing. The language of the arbitration shall be English. The arbitrator's decision shall be final and binding, subject to any rights of review or challenge available under applicable law.

28.4 Court Proceedings

Nothing in these Terms prevents either party from seeking urgent interim or protective relief from a court of competent jurisdiction where such relief is necessary.

29. GOVERNING LAW

These Terms shall be governed by and interpreted in accordance with the laws of the **Federal Republic of Nigeria**. Where mandatory consumer protection or other statutory rights apply, those rights will not be excluded by these Terms.

30. NO CLASS ACTION

To the extent permitted by applicable law, disputes between a learner and Bloom Academy Africa shall be brought on an individual basis. Nothing in this clause is intended to remove or restrict any statutory right that cannot legally be waived.

31. SEVERABILITY

If any provision of these Terms is found to be invalid, unlawful, or unenforceable, that provision shall be interpreted or modified to the minimum extent necessary to make it enforceable where legally possible. The remaining provisions shall continue in full force and effect.

32. ENTIRE AGREEMENT

These Terms, together with the Privacy Policy and any applicable course-specific terms, constitute the agreement between you and Bloom Academy Africa concerning your use of the



relevant services. They supersede previous terms or understandings concerning the same subject matter, except where a separate written agreement expressly states otherwise.

33. NO WAIVER

A failure by Bloom Academy Africa to enforce a provision of these Terms does not constitute a waiver of our right to enforce that provision later.

34. ASSIGNMENT

You may not transfer or assign your rights or obligations under these Terms without our prior written consent. Bloom Academy Africa may assign or transfer its rights and obligations in connection with a merger, acquisition, restructuring, sale of assets, corporate reorganisation or other legitimate business transaction, subject to applicable law. Where such transfer materially affects your contractual rights, we will provide notice where required.

35. CHANGES TO THESE TERMS

Bloom Academy Africa may amend these terms from time to time. The latest version will be published on our website. Where changes are material, we will provide reasonable notice through the platform, email, or another appropriate method. The updated terms will state their effective date.

36. CONTACT US

If you have questions, concerns, or complaints regarding these terms, please contact us:

Bloom Academy Africa Limited

Telephone: 0708 627 8644

Address: Plot 91A, 43 Cres, Gwarinpa Estate, Gwarinpa 901108, Federal Capital Territory

Website: <https://bloomacademyafrica.com>

37. RELATED POLICIES

The following policies form part of Bloom Academy Africa's legal and operational framework and should be read together with these terms where applicable:



- Privacy Policy
- Refund/Cancellation Policy
- Code of Conduct
- Course-specific rules
- Community Guidelines
- Any applicable promotional terms

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